

Cross-defendant Judds All-Trade Inc. demurs to the cross-complaint filed by Elite MD. (Judds is named in the cross-complaint as All-Trade Engineering & Design; the cross-complaint never mentions “Judds”. The demurrer acknowledges the name used in the cross-complaint as a dba of Judds, however, and apparently it is not disputed that the demurring party is the entity being sued in the cross-complaint as All-Trade. The Court will use that name for convenience.)

The demurrer is unopposed, and it is **sustained** with leave to amend.

Elite is the customer on a construction project to build out a medical office. The general contractor, Graves, sues Elite for collection. Elite brought this cross-complaint against Graves and several businesses alleged to be subcontractors or service providers to Graves, alleging in extremely vague and general terms that the construction featured delays and defects. All-Trade is mentioned in the cross-complaint only in the initial listing of parties, with the allegation that it “performed architectural, engineering and design services for Elite”. It is not alleged, however, that there existed any direct contractual relation between Elite and All-Trade.

All-Trade (and the other alleged subs) are sued only in Count 2 on a third-party-beneficiary contract theory, and in Count 3 for general negligence. As All-Trade correctly states, however, the cross-complaint is entirely devoid of the slightest factual allegation as to what duties any of these subs was contracted to perform, or what they are alleged to have done wrong or not done right. There is no factual allegation of what breaches of contract or duty Elite claims to have suffered. It appears that the relevant text of the cross-complaint was likely copied verbatim out of a formbook somewhere.

If Elite actually thinks it has any factual basis for a claim against All-Trade, it may amend to allege one. If it doesn’t, it should drop All-Trade as a party. A first amended cross-complaint may be filed and served by May 8. If none is filed by then, it will be taken that Elite is acknowledging that it has no viable claim against All-Trade.

13. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

This motion was dropped by the parties.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING RENOVATION, LLC
TENTATIVE RULING:

Defendants Richmond Housing Renovation, LLC, Richmond Community Foundation and Richmond Community Foundation dba RCF Connects’ demurrer to the complaint is **sustained with leave to amend as to** Richmond Housing Renovation, LLC. As to Richmond Community Foundation